TOWNSHIP OF LINCOLN
CLARE COUNTY, P.O. BOX 239
LAKE GEORGE, MI 48633

Supervisor, Dennis Zimmerman
Clerk, Carol Majewski
Treasurer, Maggie Carey
Trustee, Jerry Bridges
Trustee, Mike Tobin

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, November 19, 2014

The meeting was called to order by Chair Godau at 7:01 pm.

Roll Call:
Present – Chair Godau, Vice-Chair Swanson, Liaison Bridges, Member Engelhardt, Secretary Szczepanski, Zoning Administrator Carey, Building Inspector Mantei, Recording Secretary Sherrod
Absent – 0
Public – Tami McCaslin, Maggie Carey, Al Housler, Mike Green of Fairchild & Green Realty, Fred Witchell

Approval of Minutes:
Regular Meeting minutes of November 12, 2014 – It was moved by Bridges and seconded by Godau to accept the minutes as corrected with the addition of the word *not* on page 3, 3rd sentence from the end of the Petitioner's Statement. Motion passed Yes (5) No (0) (Alternate McCaslin voted while Szczepanski abstained as he was absent for the hearing in question.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

General Comments by Chair: Chair Godau advised that Lincoln Township is a zoned township, of only six in Clare County. It is important for people who move into the township to understand that Lincoln is zoned and how the boards are selected or elected and the structure under which those boards operate.

He explained that the ZBA is not a political structure, but one of appointment. He went on to explain about what a variance involves and how the zoning administrator deals with the steps of zoning permits, building permits, and then the process in which a permit is denied. He also explained the roles of the zoning administrator and the building inspector. Once an appeal is made to the ZBA and denied or approved, any aggrieved person can appeal to the Circuit Court.

Purpose: Chair Godau read the following information: This is a variance request for property #18-010-008-034-23, located at the S.W. Corner of Arthur Road and Lake George Avenue, (a proposed site for Dollar General), requesting to provide thirty-three (33) parking spaces versus the required number of forty-eight (48) per Section 1513 – Parking, Table B – Minimum Off-street Parking Requirements, Subpart 3N – Retail Stores. The notice of this variance was published in the *Clare County Cleaver* on November 6, 2014, in accordance with the township zoning ordinances. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; Minimum Variance Necessary

Zoning Administrator Statement:
See Attachment #1

Petitioner's Statement: Peter Oleszczuk, developer with Midwest V, LLC, explained that the company he will be leasing to, Dollar General has stated that they only need 30 spaces, but that they added 3 more for ease of use. Mr. Oleszczuk said that he and his partners desire to have minimal impact on the existing site. They will leave the existing trees in place. The proposed parking will provide adequate spaces for customers, employees, and enough space for the maneuvering of semis that deliver goods. He summed up the request that they are asking for only the 33 spaces for not only economic issues, but also to lessen the impact on the environment.

ZBA Members Comments & Questions:
Engelhardt: I see that this request supports the township's plan for maintaining natural resources, landscape, and recreational opportunities. I find that this supports the township's master plan.
Szczepanski: Would the addition of the required parking spaces impede on the proposed storm water retention pond?
Peter Oleszczuk: Yes,
Bridges: Where does the retention pond drain into? I have seen these become stagnant ponds downstate.
Peter Oleszczuk: We have worked with the DEQ to make sure it is draining into sandy soil at the base providing sufficient leaching. It should be a dry pond except when it rains. Storm Water Management through the County approves of this.

Public Comment:
Chair Godau stated that there were about 27 notices sent out and no comments were returned.

McCaslin: Where will delivery trucks come?
Peter Oleszczuk: They will deliver into the back area.
McCaslin: Will there be beer and wine sold at this store?
Peter Oleszczuk: I am not in charge of operations, and don't know about this store.
Maggie Carey: Speaking as a public citizen, I understand the importance of zoning ordinances. I have never seen a request for less rather than more. I am in favor of this request as it supports our master plan to protect our environment.
Szczepanski: I agree with Maggie's comments. They are doing more by doing less than we could expect.
Bridges: South of that property, on the east of the retention pond. That would be an area that you could expand parking into, correct?
Peter Oleszczuk: That is actually an area that we were asked by the Planning Commission to add trees as a buffer between the retention pond and the street.
Bridges: would there be room in required?
Peter Oleszczuk: Yes, there would with modifications
Szczepanski: This site plan was approved by the Planning Commission with the stipulation that there will be trees added to the landscaping.
Engelhardt: I am fully in approval of the addition of more trees.
Godau: I looked at other Dollar General stores and their parking and find that they all seem to follow this same request.
Peter Oleszczuk: The fact that we are trying to help protect the environment with less, doesn't happen very often.

Bridges: Some of the concerns that I have heard, though, are about if Dollar General doesn't make it here, what kinds of problems does it bring in if a larger store comes in its place? Parking then becomes a problem as there wouldn't be enough parking. I think you will be more successful, though, than you have projected with many people coming from other townships.
Peter Oleszczuk: We have a 15-year corporate lease. If another entity comes in and needs more parking, I assume they will request more.
Bridges: That is not the way it works.
Maggie Carey: Should the day come that there is not enough parking due to a big sale or something, there are other areas that people can use.
Bridges: I am just going on my experience from downstate.
McCaslin: I went to the Dollar General store in Clare today and I couldn't get into the parking lot there. But I don't think Lake George will have that problem.
Godau: You have a 15-year lease with Dollar General. What if they close and another business like a restaurant comes in and you need more parking spaces? If we were to make some wording here that the variance was granted for the reduction of the spaces contingent specifically for the use of Dollar General…
Bridges: That is exactly what I have intended to propose in a motion. I feel that the board seems to be leaning toward the granting of this variance. I propose that the motion should include the contingency on Dollar General's occupancy with a reversion to the original ordinance requirement if they vacate the property.
Peter Oleszczuk: Wouldn't that be a burden on the next business?
Bridges: A future business or restaurant would have to either comply with the current ordinance or use a different formula for the correct number of parking spaces.
Greg Oleszczuk: What you are saying is that you just want to guarantee that any future business will come before you to review use of the property. You somewhat have that in your ordinance. There are some avenues that you can get to that review process.
Bridges: I am not sure that a restaurant is a good analogy as there are such different requirements for those as opposed to retail. Another retail establishment coming in could be a bigger draw and it would have to go to the board anyway.
Greg Oleszczuk: It is Dollar General that is asking for this. If Dollar General is no longer there, the variance goes with them and is no longer there.
Bridges: That is what I am saying; that this variance goes with Dollar General.
Godau: I will read again Bridges proposed language for a motion. Basically, it says that if we will grant this variance and if Dollar General leaves, the variance is over.

ZBA Members Comments & Questions:

No further comments or questions from the board members.

Public Hearing Closed by Chair: 7:55 pm

Closed Hearing is called to Order by Chair: 7:55 pm

Discussion and Further Questions by ZBA Members:
None

Closed Session is Closed by Chair: 7:56 pm

Open Meeting Reconvened by Chair: 7:56 pm
No further questions

Finding of Fact: The board finalized their finding of facts and turned them in to Chair Godau to compile.

Final Decision: Godau requested a motion from the board. Bridges made the motion to allow relief from the existing zoning ordinance requirements and allow Dollar General to create 33 parking spaces instead of the 48 required under the formula in the Lincoln Township Zoning Ordinance. This relief shall apply only to the Dollar General business (not the building) and only as long as Dollar General occupies this building. If Dollar General fails to occupy this building, the parking requirements shall revert back to the required parking spaces calculated by the current Lincoln Township Zoning Ordinance formula. Szczepanski seconded.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

Roll Call Vote:
Godau: **Yay**; Swanson: **Yay**; Bridges: **Yay**; Engelhardt: **Yay**; Szczepanski: **Yay**
Motion Passed: 5 Yays; 0 nays. Variance is granted.

Adjournment: Bridges moved to adjourn; Engelhardt seconded. Motion passed with all in favor. Meeting adjourned at 8:00 pm.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary

Attachment #1

On September 29, 2014, I received an application for a Zoning Permit from Midwest V, LLC for a Commercial endeavor on the SW corner of Arthur Road and Lake George Avenue. I denied the Zoning Permit as Midwest V, LLC was asking for 33 parking spaces and our Zoning Ordinance requires 48 spaces for this size of Commercial Endeavor.

Roger Carey

Zoning Administrator